Discuss Revisions to
Board Policy GF (Local)

Recommendation:
That the Board of Trustees adopt updated Local Board Policy GF (Local) Public Complaints.

Explanation:
The Administration recommended revisions to Board Policy GF Public Complaints.
GThe Administration recommends that the updated Local Board Policy GF (Local) be adopted as presented.

Policy Reference: GF Local

Recommended by:

Dr. Ted Landry
Interim Superintendent of Schools

~~Complaints~~

~~In this policy, the terms "complaint" and "grievance" shall have the same meaning.~~

Other ~~Complaint~~ Grievance Processes

~~Complaints~~ Grievances by members of the public shall be filed in accordance with this policy, except as required by the policies listed below. Some of these policies require appeals to be submitted in accordance with GF after the relevant ~~complaint~~ grievance process:

1. ~~Complaints~~ Grievances concerning instructional resources shall be filed in accordance with the EF series.
2. ~~Complaints~~ Grievances concerning a commissioned peace officer who is an employee of the District shall be filed in accordance with the CKE series.

~~Complaints~~ Grievances regarding refusal of entry to or ejection from District property based on Education Code 37.105 shall be filed in accordance with this policy. However, the timelines shall be adjusted as necessary to permit the complainant to address the Board in person within 90 calendar days of filing the initial ~~complaint~~ grievance, unless the ~~complaint~~ grievance is resolved before the Board considers it. [See GKA(LEGAL)]

Guiding Principles

Informal Process

The Board encourages the public to discuss concerns with an appropriate administrator who has the authority to address the concerns. Concerns should be expressed as soon as possible to allow early resolution at the lowest possible administrative level.

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Informal resolution shall be encouraged but shall not extend any deadlines in this policy, except by mutual written consent and as stated in this policy.

Formal Process

An individual may initiate the formal process described below by timely filing a written ~~complaint~~ grievance on the District's form.

Even after initiating the formal ~~complaint~~ grievance process, individuals are encouraged to seek informal resolution of their concerns. An individual whose concerns are resolved may withdraw a formal ~~complaint~~ grievance at any time.

The process described in this policy shall not be construed to create new or additional rights beyond those granted by law or Board policy, nor to require a full evidentiary hearing or "mini-trial" at any level.

Freedom From Retaliation

Neither the Board nor any District employee shall unlawfully retaliate against any individual for bringing a concern or ~~complaint~~ grievance.

General Provisions

Filing

~~Complaint~~ Grievance forms and appeal notices may be filed by hand-delivery, by electronic communication, including email and fax, or by U.S. Mail. Hand-delivered filings shall be timely filed if received by the appropriate administrator or designee by the close of business on the deadline. Filings submitted by electronic communication shall be timely filed if they are received by the close of business on the deadline, as indicated by the date/time shown on the electronic communication. Mail filings shall be timely filed if they are postmarked by U.S. Mail on or before the deadline and received by the appropriate administrator or designated representative no more than three days after the deadline.

Scheduling Conferences

The District shall make reasonable attempts to schedule conferences at a mutually agreeable time. If the individual fails to appear at a scheduled conference, the District may hold the conference and issue a decision in the individual's absence.

Response

At Levels One and Two, "response" shall mean a written communication to the individual from the appropriate administrator. Responses may be hand-delivered, sent by electronic communication to

the individual's email address of record, or sent by U.S. Mail to the individual's mailing address of record. Mailed responses shall be timely if they are postmarked by U.S. Mail on or before the deadline.

Days

"Days" shall mean District business days, unless otherwise noted. In calculating timelines under this policy, the day a document is filed is "day zero." The following business day is "day one."

Representative

"Representative" shall mean any person who or organization that is designated by an individual to represent the individual in the ~~complaint~~ grievance process.

The individual may designate a representative through written notice to the District at any level of this process. If the individual designates a representative with fewer than three days' notice to the District before a scheduled conference or hearing, the District may reschedule the conference or hearing to a later date, if desired, in order to include the District's counsel. The District may be represented by counsel at any level of the process.

Consolidating ~~Complaint~~ Grievances

~~Complaints~~ Grievances arising out of an event, or a series of related events shall be addressed in one ~~complaint~~ grievance. An individual shall not file separate or serial ~~complaints~~ grievances arising from any event or series of events that have been or could have been addressed in a previous ~~complaint~~ grievance. 366

Untimely Filings

All time limits shall be strictly followed unless modified by mutual written consent.

If a ~~complaint~~ grievance form or appeal notice is not timely filed, the ~~complaint~~ grievance may be dismissed, on written notice to the individual, at any point during the ~~complaint~~ grievance process. The individual may appeal the dismissal by seeking review in writing within ten days from the date of the written dismissal notice, starting at the level at which the grievance was dismissed. Such appeal shall be limited to the issue of timeliness.

Costs Incurred

Each party shall pay its own costs incurred in the course of the ~~complaint~~ grievance.

~~Complaint~~ Grievance And Appeal Forms

~~Complaints~~ Grievances and appeals under this policy shall be submitted in writing on a form provided by the District.

Copies of any documents that support the ~~complaint~~ grievance should be attached to the ~~complaint~~ grievance form. If the individual does not have copies of these documents, they may be presented at the Level One conference. ~~After the Level One conference, no new documents may be submitted by the individual unless the individual did not know the documents existed before the Level One conference.~~

A ~~complaint~~ grievance or appeal form that is incomplete in any material aspect may be dismissed but may be refiled with all the required information if the refiling is within the designated time for filing.

Recusal

A District employee or Board member involved in reviewing a grievance must recuse himself or herself from the review process if that employee or Board member is the subject of the grievance. If a Board member files a grievance, he or she shall be prohibited from voting on matters related to that grievance. If the designated administrator at any level of the review process is required to recuse himself or herself, the grievance shall be subject to a higher level of review.

Grievance Record

At each level of the grievance review process, a record shall be created and retained by the District. This record shall include:

1. Documents submitted by the person who filed the grievance or determined relevant by school district personnel; and
2. A written record of the decision, including an explanation of the basis for the decision and an indication of each document that supports the decision.

The person who filed the grievance may supplement the record with additional documents or add additional claims.

Remand

At any time, a grievance may be remanded to a lower level of review to develop a record, including when a grievance is pending before the Board of Trustees.

Decisions Made on the Merits

At each level in the grievance review process, the District shall issue a decision on the merits of the concern raised in the grievance, notwithstanding procedural errors or the type of relief requested.

Level One

~~Complaint~~ Grievance forms must be filed:

1. Within ~~15~~ 60 calendar days of the date the individual first knew~~, or with reasonable diligence, should have known, of the decision or action~~ or had reason to know of the facts giving rise to the ~~complaint or~~ grievance, or the later of:
   a. 90 calendar days of the date the student or parent (or person standing in parental relation to a student) first knew or had reason to know of the facts giving rise to the grievance if the grievant engaged in informal attempts to resolve the grievance, or
   b. 30 calendar days from the date on which the District provided information to the grievant regarding how to file the grievance; and
2. With the principal's or principal's designee's office at the school campus at which the facts giving rise to the grievance occurred, or, for a grievance that arises from a subject matter unrelated to a campus, with an administrator at the District's central office. ~~District's legal office.~~

If the only administrator who has authority to remedy the alleged problem is the Superintendent or designee or the grievance arises from subject matter unrelated to a campus, the grievance may begin at Level Two following the procedure, including deadlines, for filing the grievance form at Level One.

If the ~~complaint~~ grievance is not filed with the ~~District's legal office~~ appropriate administrator as stated above, the receiving administrator must note the date and time the ~~complaint~~ grievance form was received and immediately forward the ~~complaint~~ grievance form to the ~~District's legal office~~ appropriate administrator as stated above.

The ~~Level One hearing officer~~ principal, designee, or other appropriate administrator shall investigate as necessary and schedule a conference with the individual within ten calendar days after the date the grievance was initially filed ~~receipt of the written complaint~~. The ~~hearing officer~~ principal, designee, or other appropriate administrator may set reasonable time limits for the conference.

~~Absent extenuating circumstances, the~~ The ~~hearing officer~~ principal, designee, or other appropriate administrator shall provide the individual a written response within ~~ten~~ 20 calendar days following the conference. The written response shall set forth the basis of the decision, any relief or redress to be provided and information regarding filing an appeal, including the timeline for filing such appeal under this policy and under Texas Education Code § 7.057, as applicable. In reaching a decision, the ~~hearing officer~~ principal, designee, or other appropriate administrator may consider information provided at the Level One conference and any other relevant documents or information the ~~hearing officer~~ principal, designee, or other appropriate administrator believes will help resolve the ~~complaint~~ grievance.

Level Two

If the individual did not receive the relief requested at Level One or if the time for a response has expired, he or she may request a conference with the designated Level Two administrator to appeal the

Level One decision. The designated Level Two administrator shall be the Superintendent or the Superintendent's designee at the District's central office.

The appeal notice must be filed in writing, on a form provided by the District~~'s legal office~~, within ~~ten~~ 20 calendar days of the date of the written Level One response or, if no response was received, within ~~ten~~ 20 calendar days of the Level One response deadline.

After receiving notice of the appeal, the ~~Level One~~ principal, designee, or other appropriate administrator who considered the grievance at Level One shall prepare and forward a record of the Level One ~~complaint~~ grievance to the Level Two administrator ~~hearing officer and legal office~~. The individual may request a copy of the Level One record.

The Level One record shall include:

1. The original ~~complaint~~ grievance form and any attachments.
2. All other documents submitted by the individual at Level One.
3. The written response issued at Level One and any attachments.
4. All other documents relied upon by the Level One administrator in reaching the Level One decision.

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The Level Two administrator shall schedule a conference within ten calendar days after the appeal notice is filed. The conference shall be limited to the issues and documents considered at Level One. At the conference, the individual may provide information concerning any documents or information relied upon by the administration for the Level One decision. The Level Two administrator ~~hearing officer~~ may set reasonable time limits for the conference.

The Level Two administrator ~~hearing officer~~ shall provide the individual a written response within ten days following the conference. The written response shall set forth the basis of the decision, any relief or redress to be provided and information regarding filing an appeal, including the timeline for filing such appeal under this policy and under Texas Education Code § 7.057, as applicable. In reaching a decision, the Level Two administrator ~~hearing officer~~ may consider the Level One record, information provided at the Level Two conference, and any other relevant documents or information the Level Two administrator believes will help resolve the ~~complaint~~ grievance.

Recordings of the Level One and Level Two conferences, if any, shall be maintained with the Level One and Level Two records.

Level Three

If the individual did not receive the relief requested at Level Two or if the time for a response has expired, he or she may appeal the decision to the Board.

The appeal notice must be filed in writing, on a form provided by the District~~'s legal office~~, within ~~ten~~ 20 calendar days of the date of the written Level Two response or, if no response was received, within ~~ten~~ 20 calendar days of the Level Two response deadline.

The ~~legal office~~ Superintendent or designee shall inform the individual of the date, time, and place of the Board meeting at which the ~~complaint~~ grievance will be on the agenda for presentation to the Board.

The Board may delegate the authority to hear and decide a grievance to a committee of at least three members composed only of members of the Board. For purposes of an appeal to the Commissioner of Education under Texas Education Code § 7.057, a decision by this committee constitutes a decision of the Board.

The ~~legal office~~ Superintendent or designee shall provide the Board the record of the Level Two appeal. The individual may request a copy of the Level Two record. The Board or its committee must hold a meeting to discuss the grievance not later than the 60th day after the date on which the previous decision on the grievance was made.

The Level Two record shall include:

1. The Level One record.
2. The notice of appeal from Level One to Level Two.
3. The written response issued at Level Two and any attachments.
4. A summary of all previous oral testimony.
5. All other documents relied upon by the administration in reaching the Level Two decision.

The appeal shall be limited to the issues and documents considered at Level Two, except that if at the Level Three hearing the ~~administration~~ Board of Trustees intends to rely on evidence not included in the Level Two record, the ~~administration~~ Superintendent or designee shall provide the individual ~~notice of the nature~~ a description of the evidence or other information the Board intends to rely on at least ~~three~~ five days before the hearing.

The grievant may request that the hearing or meeting at which the grievance will be discussed by open or closed, unless otherwise required by law. If the grievant does not make this request, t~~T~~he ~~District~~ Board of Trustees shall determine whether the ~~complaint~~ grievance will be presented in open or closed meeting in accordance with the Texas Open Meetings Act and other applicable law. [See BE]

The presiding officer may set reasonable time limits and guidelines for the presentation, including an opportunity for the individual and administration to each make a presentation and provide rebuttal and an opportunity for questioning by the Board. The Board shall hear the ~~complaint~~ grievance and may request that the administration provide an explanation for the decisions at the preceding levels.

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In addition to any other record of the Board meeting required by law, the Board shall prepare a separate record of the Level Three presentation. The Level Three presentation, including the presentation by the individual or his or her representative, any presentation from the administration, and questions from the Board with responses, shall be recorded by audio recording, video/audio recording, or court reporter.

The Board shall then consider the ~~complaint~~ grievance. ~~It~~ The Board shall ~~may~~ make and give notice of its decision orally or in writing not later than the 30th day after the date on which the Board or its committee considers the grievance ~~at any time up to and including the next regularly scheduled Board meeting~~. ~~If the Board does not make a decision regarding the complaint by the end of the next regularly scheduled meeting, the lack of a response by the Board upholds the administrative decision at Level Two.~~

Report to TEA

The District shall annually submit to TEA a report on grievances filed in the District during the preceding year. For each grievance included on the report, the District shall include the resolution of the grievance and any corrective action taken.

Availability of Policy

The following shall be made available in a prominent location on the District's website and included in the Student Handbook:

- This policy;
- The grievance and appeal forms referenced in this policy;
- The method by which a grievance may be filed electronically.

Appeal To Commissioner

Except as may be provided to the contrary by state or federal law or other District policies, Level Three decisions by the Board may be appealed to the Commissioner of Education as outlined in Education Code 26A.